

Calendar line 9

Case Name: *Onemail Financial, LLC v. Mario Melendez Castro*

Case No.: 25CV459816

Defendant's Motion for Reconsideration to Set Aside Default

The Court recognizes that a motion for reconsideration ordinarily requires a showing of new or different facts, circumstances, or law. (CCP § 1008.) The Court also notes that no default judgment has been entered and California law strongly favors resolution of actions on their merits whenever possible.

Defendant disputes the circumstances surrounding substitute service on March 13, 2025 and asserts he did not receive actual notice of the action until by mail on July 25, 2025, at which time he promptly contacted Plaintiff's counsel. Defendant further contends that the descriptions contained in the proof of service do not match the individuals allegedly served and disputes statements regarding his whereabouts at the time of service.

While the Court recognizes Plaintiff's cited authority and the prima facie validity of service pursuant to CCP 415.20, Defendant's contentions raise a sufficient question regarding Defendant's actual notice of the action.

The Court finds that setting aside the default at this stage will permit adjudication on the merits and will not result in substantial prejudice to Plaintiff beyond the delay inherent in litigation. By contrast, denial of relief would likely result in disposition of the action without a determination on the merits. Under these circumstances, and in light of the strong policy favoring resolution of cases on their merits, the Court exercises its discretion pursuant to CCP section 473(b) to grant relief from default.

Accordingly,

Defendant's motion is GRANTED. The entry of default entered against Defendant is VACATED. Defendant shall file and serve a responsive pleading within 14 days of service of the notice of entry of this order.

Calendar line 10 & 11**Case Name:** *Linda Johnson et al v. Hanford Hotels, Inc.***Case No.:** 25CV477676

Plaintiff's Application to Seal Portions of Moving Papers in Support of Petition for Approval of Minor's Compromise

PROCEDURAL BACKGROUND

This wrongful death action arises from the death of Terril Wade Johnson, Sr., who died on May 22, 2025, from severe scalding burns sustained in a hotel shower at the Fairfield by Marriott Inn & Suites San Jose Airport. Plaintiffs filed the complaint on October 15, 2025. The Court granted mandatory trial preference under Code of Civil Procedure section 36(a) on January 23, 2026, based on the advanced age and serious illness of plaintiff Linda Johnson, the decedent's surviving spouse. The parties reached a global settlement on May 14, 2026.

GOVERNING LAW

Unless confidentiality is required by law, court records are presumed to be open. Cal. Rules of Court, rule 2.550. The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. Cal. Rules of Court, rule 2.550, (Timothy W. v. Julie W. (2022) 85 Cal.App.5th 648)

An order sealing the record must specifically state the facts that support the findings and direct the sealing of only those documents and pages, or portions thereof, that contain the material that needs to be placed under seal. Cal. Rules of Court, rule 2.550. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. Rules of Court, rule 2.551.

The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178) ; Savaglio v. Wal-Mart Stores, Inc. (2007), 149 Cal. App. 4th 588. Under the California Constitution, the people have the right of access to information concerning the conduct of the people's business, and court records are presumptively open to public scrutiny. Cal Const, Art. I § 3.

A party seeking to seal documents must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them. H.B. Fuller Co. v. Doe, (2007) 151 Cal. App. 4th 879. A reasoned decision about sealing records cannot be made without identifying the specific information claimed to be entitled to such treatment, the nature of the harm threatened by disclosure, and countervailing considerations.

Individuals have a recognized privacy interest in their medical and mental health records that can constitute an overriding interest under rule 2.550(d). Overstock.com, Inc. v. Goldman